[Public Land Order 359]

ALASKA

REVOKING EXECUTIVE ORDER 771 OF MARCH 18, 1908, RESERVING LANDS FOR USE OF NAVY DEPARTMENT AND EXECUTIVE ORDER 1248 OF SEPTEMBER 26, 1910, TRANSFERRING CONTROL TO WAR DEPARTMENT

By virtue of the authority vested in the President, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 771 of March 18, 1908, reserving certain lands on Hawkins Island in Prince William Sound, Alaska, for the use of the Navy Department, and Executive Order No. 1248 of September 26, 1910, transferring control of these lands to the War Department are hereby revoked, effective at 10:00 a. m. on May 16, 1947. At that time the lands thereby released shall become subject to the provisions of Proclamation of July 23, 1907 (35 Stat. 2149) reserving public lands for the Chugach National Forest.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

MARCH 14, 1947.

[F. R. Doc. 47-2709; Filed, Mar. 24, 1947; 8:46 a. m.]

[Public Land Order 360]

SOUTH DAKOTA

REVOKING EXECUTIVE ORDERS OF APRIL 18, 1881, SEPTEMBER 16, 1889, AND JUNE 5, 1925, AND RESERVING LANDS INVOLVED AS MEADE DISTRICT OF BLACK HILLS NATIONAL FOREST

By virtue of the authority vested in the President by section 24 of the act of March 3, 1891 (26 Stat. 1103), as supplemented by the act of June 4, 1897 (30 Stat. 34, 36, U. S. C. Title 16, secs. 471, 473, 475), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The Executive Orders of April 18, 1881, and September 16, 1889, reserving lands for the Fort Meade Wood and Timber Military Reservation, and Executive Order No. 4244 of June 5, 1925, establishing the Meade District of the Black Hills National Forest are hereby revoked, and the lands subject to those orders are hereby reserved and set apart as the Meade District of the Black Hills National Forest under the jurisdiction of the Department of Agriculture.

This order is subject to the conditions that the Department of Agriculture will:

(1) Protect the present water installation that serves the Veterans' Administration's facilities; and protect and manage all of the lands subject to this order so as to assure maximum quantity and quality of water, such management to include adequate fire prevention and suppression measures, the exclusion or regulation of grazing, road construction, and occupancy where the same otherwise would endanger the purity of the water, and the regulation of the cutting of timber so as to protect the quantity of water derived from the lands;

(2) Grant permission to the Veterans' Administration to make such additional water supply installations as may be necessary; and

(3) Cooperate with the Veterans' Administration in the protection of its interests in the lands subject to this order to the greatest extent compatible with the laws and regulations relating to the protection and management of national forest lands.

It is intended that these lands shall be returned to the administration of the Department of the Interior, when they are no longer needed by the Department of Agriculture for the purpose for which they are reserved.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

MARCH 14, 1947.

[F. R. Doc. 47-2710; Filed, Mar. 24, 1947; 8:46 a. m.]

Chapter II—Bureau of Reclamation, Department of the Interior

PART 401—APPLICATIONS FOR ENTRY ON PUBLIC LANDS AND WATER RENTAL

SUN RIVER IRRIGATION PROJECT, GREENFIELDS DIVISION, MONTANA

CROSS REFERENCE: For public notice announcing availability of water for public lands and opening of public lands to entry in Sun River Irrigation Project, Greenfields Division, Montana, see Department of the Interior, Bureau of Reclamation, in Notices section, *infra*.

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 8070]

PART 9—AVIATION RADIO SERVICES

AERONAUTICAL RADIOCOMMUNICATION SERVICE

MARCH 17, 1947.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 10th day of March, 1947;

The Commission having under consideration the matter of Rules and Regulations Governing the Aeronautical Radiocommunication Service;

It appearing, that on January 23, 1947 the Commission released a notice of proposed rule making, with provision for oral argument, and with appendix setting forth a proposed general revision of the rules and regulations governing aviation services, which notice and appendix were duly published; and

It further appearing, that a further notice of proposed rule making in this matter was issued on March 6, 1947 in which §§ 9.40, 9.41, 9.42, and 9.43 of the proposed rules were deleted; and

The Commission having considered the testimony presented at the oral argument held on March 10, 1947, and having determined upon such consideration that the public interest, convenience and necessity will be served by the adoption of revised rules and regulations relating to aeronautical service;

It is ordered, That the attached Part 9, rules and regulations governing aeronautical services, be, and it is hereby, adopted, effective May 1, 1947.

These rules and regulations supersede Part 9, Rules and Regulations Governing Aviation Services, effective August 1, 1939, as revised.

DEFINITIONS

Sec.
9.1 Aeronautical radiocommunication service.
9.2 Aeronautical public communication service.
9.3 Aircraft radio station.
9.4 Ground radio station.
9.5 Aeronautical navigational radio station.
9.6 Flight test station.
9.7 Flying school station.
9.8 Aeronautical public service station.

APPLICATIONS AND LICENSES

9.101 Applications made on prescribed forms.
9.102 Place of filing.
9.103 Subscription and verification of applications.
9.104 Contents of applications.
9.105 Application for aircraft radio station license.
9.106 Application for aeronautical public service aircraft station.
9.107 Transfer and assignment of aircraft.
9.108 Application for ground station authorization.
9.109 Application for special temporary authorization.
9.110 Changes in antenna.
9.111 Amendments and dismissals.
9.112 Form of amendments.
9.113 Amendments ordered.
9.114 Defective applications.
9.115 Partial grants.
9.116 License period.
9.117 Renewal of license.
9.118 Posting station licenses.
9.119 Posting operator licenses
9.120 Discontinuance of operation.
9.121 Suspension of operation.

TESTS

9.141 Equipment and service tests.
9.142 Routine tests.

LOGS

9.151 Information required in station logs.
9.152 Station records in the aeronautical public service.
9.153 Required retention period.
9.154 Logs, by whom kept.
9.155 Log form.
9.156 Correction of log.

TECHNICAL SPECIFICATIONS

9.171 Installation and operation of transmitting equipment.
9.172 Frequency stability.
9.173 Frequency measurements.
9.174 Power.
9.175 Types of emission.
9.176 Modulation and band width.
9.177 Inspection of tower lights and associated control equipment.

MISCELLANEOUS

9.191 Station identification.
9.192 Availability for inspections.
9.193 Permissible communications.
9.194 Answers to notices of violations.
9.195 Movement of portable or mobile stations from one inspection district to another.

Sec.

AIRCRAFT RADIO STATIONS

9.311 Communications.
9.312 Frequencies available.
9.315 Lighter-than-air craft frequencies.

AIR CARRIER AIRCRAFT STATIONS

9.321 Frequencies available.

PRIVATE AIRCRAFT STATIONS

9.331 Frequencies available.

AIRDROME CONTROL STATIONS

9.411 Frequencies available.
9.412 Service to be rendered.
9.413 Hours of operation.
9.414 Airdrome facilities.
9.415 Interference.
9.416 Power.

AERONAUTICAL LAND STATIONS

9.431 Service authorized.
9.432 Frequencies available.

AERONAUTICAL FIXED STATIONS

9.441 Service authorized.
9.442 Emergency service.
9.443 Frequencies available.

AERONAUTICAL MOBILE UTILITY STATIONS

9.451 Frequencies available.
9.452 Service authorized.
9.453 Power.
9.454 Supervision by airdrome control operator.

AERONAUTICAL NAVIGATIONAL AID RADIO STATIONS

9.511 Frequencies available.
9.512 Basis of grant of facilities.

FLIGHT TEST STATIONS

9.611 Frequencies available.
9.612 Eligibility of licensee.
9.613 Cooperative use of facilities.
9.614 Service to be rendered.
9.615 Power.
9.616 Supervision of airdrome control operator.

FLYING SCHOOL STATIONS

9.711 Frequencies available.
9.712 Eligibility of licensee.
9.713 Limitations of instructional facilities.
9.714 Coordinated use of instructional facilities.
9.715 Use of flying school frequency.
9.716 Supervision by airdrome control operator.
9.717 Power.
9.718 Frequency assignments nonexclusive.
9.719 Private service prohibited.

AERONAUTICAL PUBLIC SERVICE STATIONS

9.811 Frequencies available.
9.812 Stations licensed for aeronautical public service.
9.813 Scope of service.
9.814 Requirement for aeronautical public service station.
9.815 Priority of communications.

AUTHORITY: §§ 9.1 to 9.815, inclusive, issued under secs. 303 (f), 303 (r), 307, 48 Stat. 1082, 1083, 50 Stat. 191, 47 U. S. C. 303 (f) 303 (r), 307.

NOTE 1: Table showing source of provisions contained in Part 9 of the rules and regulations.

Present section No.:	*Old section No.*
9.1	9.1
9.2	9.2
9.3	9.3
9.4	9.6, 9.7, 9.9
9.5	New
9.6	9.15
9.7	9.10
9.8	9.13, 9.14
9.101	1.301
9.102	1.209
9.103	1.301
9.104	1.304
9.105	1.318, 9.24
9.106	New
9.107	New
9.108	1.312, 1.317
9.109	1.324
9.110	2.81
9.111	1.365
9.112	1.307
9.113	1.306
9.114	1.506
9.115	1.509
9.116	9.21
9.117	1.320
9.118	9.22
9.119	9.23
9.120	2.66
9.121	New
9.141	9.31, 2.42, 2.43
9.142	9.32
9.151	9.41
9.152	9.42
9.153	9.43
9.154	2.55
9.155	2.56
9.156	2.57
9.171	2.53
9.172	9.81
9.173	9.82
9.174	New
9.175	9.83
9.176	2.74
9.177	2.82
9.191	9.61
9.192	9.51
9.193	9.62
9.194	1.401
9.195	New
9.311	9.91
9.312	9.72, 9.80
9.315	9.74
9.321	9.72, 9.80
9.331	9.72, 9.80, 9.101
9.411	9.71, 9.80
9.412	9.111, 9.113
9.413	9.111
9.414	9.112
9.415	9.115
9.416	9.116
9.431	9.101
9.432	9.73, 9.80
9.441	9.102
9.442	9.104
9.443	9.73
9.451	9.80
9.452	New
9.453	9.80
9.454	New
9.511	9.75, 9.80
9.512	9.141
9.611	9.80
9.612	9.161
9.613	9.162
9.614	9.163
9.615	9.164
9.616	9.165
9.711	9.80
9.712	9.121
9.713	9.122
9.714	9.123
9.715	9.124
9.716	9.125
9.717	9.126
9.718	9.127
9.719	9.128
9.811	9.78
9.812	9.151
9.813	9.152
9.814	9.154
9.815	9.63

NOTE 2: Table showing section in former Part 9 corresponding to sections in present Part 9.

Old section No.	*Present section No.*
9.1	9.1
9.2	9.2
9.3	9.3
9.4	9.3
9.5	9.3
9.6	9.4
9.7	9.4
9.8	
9.9	9.4
9.10	9.7
9.11	9.5
9.12	9.5
9.13	9.8
9.14	9.8
9.15	9.6
9.21	9.116
9.22	9.118
9.23	9.119
9.24	9.105
9.31	9.141
9.32	9.142
9.41	9.151
9.42	9.152
9.43	9.153
9.51	9.192
9.52	
9.61	9.191
9.62	9.193
9.63	9.815
9.71	9.411
9.72	9.312, 9.321, 9.331
9.73	9.432, 9.443
9.74	9.315
9.75	9.511
9.77	9.711
9.78	9.811
9.79	9.611
9.80	9.312, 9.321, 9.331, 9.411, 9.432, 9.451, 9.453, 9.511, 9.611, 9.711
9.81	9.172
9.82	9.173
9.83	9.175
9.91	9.311
9.101	9.431
9.102	9.441
9.103	9.174
9.104	9.431, 9.442
9.111	9,412, 9.413
9.112	9.414
9.113	9.412
9.114	
9.115	9.415
9.116	9.416
9.121	9.712
9.122	9.713
9.123	9.714
9.124	9.715
9.125	9.716
9.126	9.717
9.127	9.718
9.128	9.719
9.141	9.512
9.151	9.812
9.152	9.813
9.153	
9.154	9.814
9.161	9.612
9.162	9.613
9.163	9.614
9.164	9.615
9.165	9.616

NOTE 3: Table showing forms currently in effect and where they are referred to in Part 9 of the rules and regulations.

Form No.:	*Section*
401	9.108 (a), 9.411, 9.511
401a	9.108 (a)
403	9.108 (b)
404	9.105 (a), (b); 9.106
404–A	9.105 (b)
405	9.105 (a), 9.106, 9.108 (d)
453–B	9.105 (c)
702	9.108 (e)